

26STCV06779 26STCV06779

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C08%2F24%2F2026

Source SHA-256: 3665774938ea8ca1d6cb9cc9b38147df261dfd63be3a0bce6d9c0682156aeb86

Case Number: 26STCV06779 Hearing Date: August 24, 2026 Dept: 307

9 TENTATIVE RULING 9:00 a.m., Monday, August 24, 2026

MARICELIS

CARBALLO DE BARROSO v. READY PAC PRODUCE, INC., et al. [26STCV06779]

DEFENDANT

READY PAC PRODUCE, INC.'S MOTION TO COMPEL ARBITRATION

TIMELINE:

Employment case: FEHA disability claims and CFRA claims

8/17/2003: Plaintiff Maricelis Carballo De

Barroso ("Plaintiff") begins her employment with Defendants Ready Pac Produce, Inc. ("Ready Pac") and Bonduelle Fresh Americas ("Bonduelle"), a DBA of Ready Pac Foods, Inc. (collectively, "Defendants"). Throughout her employment, Plaintiff worked in various positions related to quality control and machinery inspections. Over time, Plaintiff develops severe arthritis in her hands.

7/2022: Plaintiff is transferred to Defendants'

Quality Assurance department.

9/15/2023: Plaintiff takes approved leave under

the California Family Rights Act ("CFRA") to serve as a caregiver for her daughter. Plaintiff returns to work on 11/3/2023.

2/16/2024: Plaintiff takes a brief medical

leave for her arthritis and returns to work on 3/1/2024.

6/5/2024: Plaintiff's medical providers place her on a disability-related leave of absence, which is extended multiple times through 10/6/2024.

8/10/2024: Defendants issue a written "Notice of Leave of Absence Exhausted" to Plaintiff, informing her that Defendants would not extend her medical leave beyond 9/9/2024. Defendants do not engage in an interactive process with Plaintiff related to her disability.

9/13/2024: Defendants' HR representative contacts Plaintiff via phone and states that Defendants could no longer accommodate her medical needs. Plaintiff is told that she could either resign or be terminated.

9/24/2024: Defendants terminate Plaintiff's employment for failure to return from leave.

3/2/2026: Plaintiff files a complaint with the California Civil Rights Department ("CRD") and obtains a Right to Sue letter.

3/2/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Failure to Accommodate (Gov. Code § 12940, subd. (m))
2. Failure to Engage in an Interactive Process (Gov. Code § 12940, subd. (n))
3. Disability Discrimination (Gov. Code § 12940, subd. (a))
4. FEHA Retaliation (Gov. Code § 12940, subd. (h))
5. Failure to Prevent Discrimination, Harassment, or Retaliation (Gov. Code § 12940, subd. (k))
6. Interference under CFRA (Gov. Code § 12945.2, subd. (q))

7. Retaliation under CFRA (Gov. Code
§ 12945.2, subd. (k))

8. Age Discrimination (Gov. Code §
12940, subd. (a))

9. Wrongful Termination in Violation
of Public Policy

10.
Intentional
Infliction of Emotional Distress

5/19/2026: Ready Pac files an Answer to
Plaintiff's Complaint.

6/24/2026: Ready Pac files this Motion to
Compel Arbitration, which is followed by Plaintiff's Opposition (8/11/2026) and
Ready Pac's Reply (8/17/2026).

TENTATIVE

RULING: DEFENDANT READY PAC PRODUCE, INC.'S MOTION TO COMPEL ARBITRATION is GRANTED.

MOTION TO COMPEL ARBITRATION

Ready Pac moves to compel the arbitration of all
claims asserted in Plaintiff's Complaint pursuant to an arbitration agreement
executed by Plaintiff during her employment for Defendants.

A.
Existence
of an Arbitration Agreement

Ready Pac
submits a copy of the Associate Arbitration Agreement (the "Agreement"), which
was purportedly signed by Plaintiff on September 15, 2018 after she began
working for Defendants. (DeBellis Decl., ¶ 7, Exh. 1; Taylor Decl., Exh. B.)^[1]
The Agreement requires the parties to arbitrate all claims related to Plaintiff's
employment and/or termination from Ready Pac and "its affiliates, parent

companies, subsidiaries, owners, directors, officers, managers, employees, or representatives.” (Taylor Decl., Exh. B, at p. 1.)[2]

Specifically, the translated Agreement states:

It is hereby mutually agreed between the Company and the Associate that all disputes between them, including, among others, disputes arising out of or relating to the Associate's employment or the termination of the Associate's employment, shall be subject to resolution solely via final and binding arbitration in accordance with the employment arbitration rules and mediation procedures of the American Arbitration Association (“AAA”) (hereinafter, “the AAA Rules”) then in effect, as amended by applicable law and the terms of this Agreement. A copy of the current AAA Rules will be made available to all employees for review at the Human Resources office. In addition, employees may print the AAA Rules from the AAA website, www.adr.org/employment, or call 1-800-778-7879 to request that a copy be mailed to them.

The Employee and the Company hereby expressly waive their right to a jury trial...

.
..

The claims covered by this Agreement include any and all controversies, claims, or disputes with the Company that arise out of, relate to, or result from the Associate's employment with the Company or the termination of the Associate's employment with the Company...

(Id., Exh. B, § 2.) The translated Agreement also states:

The Associate expressly acknowledges and agrees that they are formalizing this Agreement voluntarily and without any coercion or undue influence. The Associate also acknowledges and agrees that they have read this Agreement carefully and understand its terms, consequences, and binding effect. Consequently, the Associate and the Company agree that this Agreement shall be binding upon their heirs, executors, administrators, successors, assigns, and representatives.

BY SIGNING BELOW AND ACCEPTING
EMPLOYMENT, OR CONTINUING EMPLOYMENT WITH THE COMPANY, THE EMPLOYEE HEREBY
KNOWINGLY AND VOLUNTARILY WAIVES THEIR LEGAL RIGHTS TO CLASS, REPRESENTATIVE,
AND COLLECTIVE PROCEEDINGS, INCLUDING PARTICIPATION IN THE CLASS ACTION TITLED
ANA L. GUZMAN, ET AL. VERSUS READY PAC PRODUCE, INC., LOS ANGELES SUPERIOR
COURT, CASE NO. BC404172, WHICH IS CURRENTLY PENDING, AND TO A TRIAL WITH OR
WITHOUT A JURY FOR ANY COVERED CLAIM. HOWEVER, THE ASSOCIATE RETAINS ALL OTHER
RIGHTS, INCLUDING THE RIGHT TO LEGAL COUNSEL, TO CROSS-EXAMINE WITNESSES, AND
TO HAVE THEIR CLAIMS ADDRESSED BY AN IMPARTIAL DATA COLLECTOR. THE ASSOCIATE
ACKNOWLEDGES THAT THEY ARE HEREBY ADVISED TO SEEK LEGAL COUNSEL REGARDING THEIR
RIGHTS AND RESPONSIBILITIES UNDER THIS AGREEMENT.

(Id.,
Exh. B, § 8.)

In the
Complaint, Plaintiff asserts ten causes of action against Defendants, each of
which arises out of her employment with and ultimate termination by Defendants.
(See Compl., generally.) Because each cause of action “aris[es] out of or
relat[es] to [Plaintiff’s] employment or the termination of [Plaintiff’s]
employment,” the entire Complaint is governed by the Agreement and can be
compelled to arbitration. (Taylor Decl., Exh. B, § 2.) By attaching a signed
copy and a verified translation of the arbitration agreement governing
Plaintiff’s claims, Ready Pac has overcome its initial burden in moving to
compel arbitration. (Bannister v. Marinidence Opco, LLC, (2021)
64 Cal.App.5th 541, 543-544.)

Plaintiff
argues that Ready Pac cannot demonstrate the validity of the Agreement because a
representative of Ready Pac did not sign the document. (Opp., at p. 4.)
Plaintiff is correct that a representative for Ready Pac did not sign the
Agreement. (DeBellis Decl., Exh. 1; Taylor Decl., Exh. B.) Even so, California
case law repeatedly finds arbitration agreements enforceable where only the
employee has signed the agreement, if the agreement reflects the employer’s intent to be bound. (Mar v. Perkins, (2024)
102 Cal.App.5th 201, 21 [finding a mutually
enforceable arbitration agreement where the agreement itself indicated that
employer agreed to be bound to the agreement and to arbitrate relevant

disputes]; *Cruise v. Kroger Co.*, (2015) 233 Cal.App.4th 390, 398–399 [finding a mutually enforceable agreement to arbitrate where the agreement was printed on the employer's company letterhead and the agreement declared the employer's intent to be bound to "mandatory" binding arbitration].)

In this case, the Agreement plainly states that Plaintiff's agreement to arbitrate is given in consideration for her employment and reflects Ready Pac's mutual assent to arbitration by including specific terms reflecting its intent to be bound. (Taylor Decl., Exh. B, at p. 1 ["It is hereby mutually agreed between the Company and the Associate that all disputes between them..."]; *Ibid.* ["The Employee and the Company hereby expressly waive their right to a jury trial..."]; *Id.*, at p. 3 ["...the Associate and the Company agree that this Agreement shall be binding upon their heirs, executors, administrators, successors, assigns, and representatives."].) As discussed above, the Agreement plainly defines the "Company" to include Ready Pac and its affiliates, parent companies, etc. (*Ibid.*) Because the unambiguous language of the Agreement indicates that Plaintiff's employer(s) agreed to be bound to the Agreement and to arbitrate relevant disputes, the absence of a signature on behalf of Ready Pac and/or Bonduelle does not render the Agreement invalid as a matter of law.

Further, the voluntary nature of the Agreement for Plaintiff does not alter this analysis. Plaintiff argues that Ready Pac cannot establish that the parties mutually assented to the Agreement because Ready Pac's contention that the Agreement was "voluntary" is inconsistent with the Agreement being a "condition of her employment." (*Opp.*, at p. 5.) However, Plaintiff's argument mischaracterizes the actual language of the Agreement. The Agreement does not state that it is a mandatory precondition of Plaintiff's employment, only that it is given "in consideration of the Employee's employment or continued employment with the Company..." (*DeBellis Decl.*, Exh. 1; *Taylor Decl.*, Exh. B, at p. 1.) Ready Pac does not require its employees to sign the Agreement. (*DeBellis Decl.*, ¶ 8.) That Ready Pac does not require all employees to agree to arbitration as a condition of employment does not undermine the fact that Plaintiff voluntarily agreed to arbitration as a term of her employment. Plaintiff has not submitted any legal authority to suggest that this distinction impedes the

finding of mutual assent to arbitration in Plaintiff's specific case.

Accordingly,

the Court finds that Ready Pac has overcome its burden of demonstrating the existence of an agreement to arbitrate the claims in Plaintiff's Complaint.

Thus, the burden shifts to Plaintiffs to prove any fact necessary to her defense by a preponderance of the evidence. (*Banner Entertainment, Inc. v. Superior Ct. (Alchemy Filmworks, Inc.)* (1998) 62 Cal.App.4th 348, 356-57.)

B.

Unconscionability

Plaintiff

argues that the Agreement is unenforceable due to unconscionability. (Opp., at p. 5.) For an arbitration

agreement to be unconscionable, both procedural and substantive unconscionability must be present. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*).)

However, "the more substantively oppressive the contract term, the less evidence of procedural unconscionability

is required to come to the conclusion that the term is

unenforceable, and vice versa." (*Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579, quoting *Armendariz*, supra, 24 Cal.

4th at p. 114). Procedural unconscionability involves oppression or surprise due to unequal bargaining power, whereas substantive unconscionability involves overly harsh or one-sided results. (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 320.)

1. Procedural Unconscionability

The Court

finds that the Agreement is minimally procedurally unconscionable. Plaintiff argues that the Agreement is procedurally unconscionable because: (1) it was presented as a mandatory "condition" of employment and (2) it fails to disclose all arbitration rules. (Opp., at pp. 7-8.) On the first issue, Plaintiff is incorrect. As discussed above, Plaintiff mischaracterizes the language use in the Agreement: the Agreement was not presented as a mandatory "condition" of Plaintiff's employment, but as a voluntary component of the consideration for her employment. (Taylor Decl., Exh. B, at p. 1; DeBellis Decl., ¶ 8, Exh. 1.)

Plaintiff fails to identify any provision on the face of the Agreement characterizing the Agreement as “mandatory.” In fact, the Agreement itself contains an expressly acknowledged agreement that the employee “agrees that they are formalizing this Agreement voluntarily...” (Taylor Decl., Exh. B, at § 8.) If Plaintiff did not agree with the terms of the Agreement, she was not required to sign Agreement. Regardless, even if Plaintiff were correct, “a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.” (Thompson v. Toll Dublin, LLC (2008) 165 Cal.App.4th 1360, 1372; Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal. App. 4th 1105, 1127; see Morris v. Redwood Empire Bancorp (2005) 128 Cal.App.4th 1305, 1320 [“Although adhesion contracts often are procedurally oppressive, this is not always the case.”].) Thus, even if Plaintiffs’ consent to the Agreement was a mandatory precondition of her employment, any such condition does not create a significant degree of procedural unconscionability.¿

Next, Plaintiff argues that the Agreement fails to disclose the rules governing the parties’ arbitration proceedings. (Opp., at p. 8.)¿The Agreement provides that the arbitration will be conducted “in accordance with the employment arbitration rules and mediation procedures of the American Arbitration Association (“AAA”) (hereinafter, “the AAA Rules”) then in effect, as amended by applicable law and the terms of this Agreement.” (Taylor Decl., Exh. B, at § 2.) Plaintiff argues that Defendant failed to provide Plaintiff with a copy of the applicable AAA rules. (Opp., at p. 8.) The failure to provide a copy of the arbitration rules to which an employee will be bound may indicate procedural unconscionability. (Trivedi v. Curexo Technology Corp. (2010) 189 Cal.App.4th 387, 393, disapproved on other grounds by Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1248; but see Peng v. First Republic Bank (2013) 219 Cal.App.4th 1462, 1472 [“the failure to attach the AAA rules, standing alone, is insufficient grounds to support a finding of procedural unconscionability.”].)

Here, however, the Agreement expressly provides that “[a] copy of the current AAA Rules will be made available to all employees for review at the Human Resources office. In addition, employees may print the AAA Rules from the AAA website, www.adr.org/employment, or call 1-800-778-7879 to request that a copy be mailed

to them.” (Taylor Decl., Exh. B, at § 2.) Although the Agreement itself does not contain a copy of the applicable rules, the Agreement provides a website link to access the applicable rules and permits employees to request a copy. There is no evidence that Plaintiff did not receive sufficient time to access/request and review the applicable AAA rules, particularly because the Agreement was voluntary in nature. Plaintiff also offers no evidence to suggest that she requested a copy of the applicable AAA rules in accordance with the Agreement or that she did not receive a copy in response to her request.

Plaintiff

also argues that the website link to the AAA rules directed employees to an English-language website, but that Defendant fails to establish that a Spanish-language copy of the rules was made available to Plaintiff. (Opp., at p. 8.) Even so, Plaintiff does not offer any evidentiary support for the suggestion that Plaintiff is unable to read or understand English, that the AAA rules are not available in Spanish, that Ready Pac refused to provide Plaintiff with a Spanish-language copy of the rules, or that Plaintiff was not given the opportunity to ask questions about the Agreement or the applicable AAA rules in her preferred language. The Agreement unambiguously explains (in Spanish) that the AAA’s rules would govern any arbitration proceedings between the parties, and it provides multiple options for accessing a copy of the applicable rules (including the opportunity to request a copy through Ready Pac’s HR department). Plaintiff fails to overcome her evidentiary burden of demonstrating that this information in the Agreement failed to provide Plaintiff with adequate information to access the applicable AAA rules in her preferred language. Plaintiff’s apparent failure to read the Agreement’s terms with reasonable diligence, including the AAA rules incorporated by reference, is not a ground to avoid arbitration. (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1673.)

Accordingly,

the Court finds that Agreement is only minimally procedurally unconscionable.

2. Substantive Unconscionability

The Court

finds that the Agreement is minimally substantively unconscionable, but the limited unconscionable provision can be severed. Plaintiff briefly argues that the Agreement is substantively unconscionable because it contains an grievance provision which requires a party who fails to exhaust the Agreement’s informal

written-grievance and mediation steps to pay the defending party's attorney's fees and costs. (Opp., at p. 7; see Taylor Decl., Ex. B, § 3.) Plaintiff argues that this fee-shifting provision unfairly burdens the employee.

As a general matter, Plaintiff fails to submit any legal authority demonstrating that provisions for informal grievance procedures are categorically non-mutual or substantively unconscionable. By its own terms, the pre-arbitration dispute resolution provision in the Agreement does apply to "either party." (Taylor Decl., Ex. B, § 3.) In general, pre-arbitration grievance procedures in and of themselves are not considered unconscionable. (*Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 710 ["a requirement that internal grievance procedures be exhausted before proceeding to arbitration is both reasonable and laudable in an agreement containing a mutual obligation to arbitrate. It plainly does not 'shock the conscience' so as to vitiate the arbitration agreement."].)

However, even to the limited extent that the Agreement's informal grievance procedure creates unfair fee-shifting implications that unfairly burdens the employee, the Court agrees that such effects are, in practice, substantively unconscionable. Regardless, pursuant to the Agreement's express severability provision, this fee-shifting provision can be severed from the Agreement while maintaining the central purpose of the informal grievance procedure. (Taylor Decl., Ex. B, § 7.)

Accordingly, Plaintiff fails to demonstrate that the Agreement is unenforceable due to unconscionability.

Therefore, Ready Pac's Motion to Compel Arbitration is GRANTED.

Pursuant to Code of Civil Procedure section 1281.4, the Court also GRANTS Ready Pac's request to stay the pending litigation until arbitration has been completed.

Defendant Ready Pac Produce, Inc. to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 8/21/26 at Noon.

[1] The original Agreement signed by Plaintiff is printed in Spanish. Ready Pac submits a copy of both the original Spanish language Agreement and an English language translation of the Agreement by an accredited translator. (See Taylor Decl., Exhs. A-B.)

[2]
The Court finds that the Agreement also covers Plaintiff's claims against Bonduelle, which falls within the definition of the "Company" in the Agreement. Ready Pac is a wholly owned subsidiary of Ready Pac Foods, Inc. (DeBellis Decl., ¶ 3.) Ready Pac asserts that Bonduelle is the DBA for Ready Pac Foods, Inc., which has not yet appeared in this action. (Mot., at p. 3, fn. 1; see Rapko Decl., ¶ 6.) As Ready Pac's parent company, Ready Pac Foods, Inc. DBA Bonduelle Fresh Americas is subject to the Agreement as an express third-party beneficiary. (Taylor Decl., Exh. B, at p. 1.)